

TOBACCO- AND SMOKE-FREE ENVIRONMENT

The Loudoun County School Board values the health, safety, and well-being of all students, staff, and visitors. Smoking and the use of tobacco products represent serious health and environmental hazards for users and non-users.

A. Definitions

1. "Nicotine vapor product" means any noncombustible product containing nicotine that employs a heating element, power source, electronic circuit, or other electronic, chemical, or mechanical means, regardless of shape or size, that can be used to produce vapor from nicotine in a solution or other form. "Nicotine vapor product" includes any electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe, or similar product or device and any cartridge or other container of nicotine in a solution or other form that is intended to be used with or in an electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe, or similar product or device. "Nicotine vapor product" does not include any product regulated by the FDA under Chapter V (21 U.S.C. § 351 *et seq.*) of the Federal Food, Drug, and Cosmetic Act.

2. "Tobacco product" means any product made of tobacco and includes cigarettes, cigars, smokeless tobacco, pipe tobacco, bidis, and wrappings. "Tobacco product" does not include any nicotine vapor product, alternative nicotine product, or product that is regulated by the FDA under Chapter V (21 U.S.C. § 351 *et seq.*) of the Federal Food, Drug, and Cosmetic Act.

B. Tobacco- and Smoke-Free Environment

1. In an effort to establish a smoke-free and smokeless tobacco-free environment, the use or distribution of any tobacco product or nicotine vapor product on a Loudoun County Public Schools-owned vehicle, including a school bus, school property, or at an on-site or off-site school-sponsored activity is prohibited.

2. This policy covers, but is not limited to, the use or distribution of any tobacco products, nicotine vapor and electronic products (i.e., for vaping), alternative nicotine products, and other smoking devices.

3. This policy applies to both employees and non-employee visitors of Loudoun County Public Schools.

C. Enforcement

1. Employee violations may result in discipline, up to, and including, termination of employment, and/or the requirement to participate in a tobacco or electronic or other smoking device cessation program.

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2. Non-employee visitors who do not abide by the prohibitions set forth in this policy will be requested to discontinue using tobacco products or electronic or other smoking devices or may be requested to leave School Board property.

Adopted: 2/23/16

Revised: 5/28/19

Current Revision: 3/14/23

Legal Refs: Code of Virginia, 1950, as amended §§ [18.2-371.2](#), [22.1-79.5](#)

Cross Refs: Policy [8240](#), Tobacco and Electronic Cigarettes